

CHAPTER 23.

An Act to amend the Bastardy Laws, and to make further and better provision with regard to children of unmarried parents; and for other purposes connected therewith. [31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Where a justice of the peace to whom an application has been duly made under section three of the Bastardy Laws Amendment Act, 1872, dies or is removed or otherwise ceases to hold office as such justice, or is unable to act, any powers and jurisdiction which might have been exercised by him under the said section on or in relation to the application, shall be exercisable by any other justice of the peace acting for the same petty sessional division or place.

As to issue of summonses by justices. 35 & 36 Vict. c. 65.

2. Section four of the Bastardy Laws Amendment Act, 1872 (which provides for the making of an order on the putative father for the maintenance, &c., of a bastard child), shall, as amended by the Affiliation Orders (Increase of Maximum Payment) Act, 1918, have effect as well for the purpose of pending applications as for the purpose of future applications as though twenty shillings a week were therein substituted for ten shillings a week, and subsections (2) and (3) of section one of the last-mentioned Act, which relate to the variation of orders under the said section four in force at the date of the commencement of that Act shall extend to the variation of orders under the said section four which are in force at the date of the commencement of this Act, with the substitution of references to this Act for references to that Act.

Increase of maximum payments under orders. 8 & 9 Geo. 5. c. 49.

3.—(1) Where an affiliation order has been made at the instance of a board of guardians, whether before or after the commencement of this Act, under section five of the Bastardy Laws Amendment Act, 1873, the

Continuation and variation of orders made at the instance of guardians.

justices who made the order or any court of summary jurisdiction may, on the application of the guardians or the mother, or any person for the time being having the custody of the child, make an order varying the former order by providing for the continuance thereof after the child has ceased to be chargeable to the union or parish and, for the purposes of the order so continued, altering the amount of the sums payable thereunder and directing that payments becoming due thereunder, shall be paid to the mother or person having the custody of the child. Provided that no order so made shall continue in force after the child has attained the age of sixteen years, or died, except for the recovery of arrears, and that the sums payable thereunder shall be weekly sums not exceeding twenty shillings a week.

(2) An application under this section may be made whilst the child is chargeable to the union or parish, or at any time within six months after the child ceases to be so chargeable.

Notice of
change of
address.

4 & 5 Geo. 5.
c. 6.

4. Any person for the time being under an obligation to make payments, including payments of costs, to any person, under an order made under the Bastardy Laws Amendment Act, 1872, or any Act amending that Act, including this Act, shall, in any case in which section four of the Affiliation Orders Act, 1914, does not apply, give notice to such persons, if any, as may be specified in the order of any change of address, and any person failing to give such notice without reasonable excuse shall be liable on summary conviction to a fine not exceeding two pounds.

Extent of
Act.

5. This Act shall not apply to Scotland or Northern Ireland.

Short title
and com-
mencement.

6. This Act may be cited as the Bastardy Act, 1923, and shall come into operation on the expiration of two months after the passing of the Act.
